



Security Camera Policy

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1. **Purpose**

Buncombe County is committed to preventing workplace violence and to fostering a safe work environment free of intimidation, harassment, and threats of or actual violence that may occur on-site or off-site during work related activities.

This Security Camera Policy outlines appropriate placement, maintenance, and support guidelines for cameras, and the responsible and ethical use of those cameras and recordings. Buncombe County will use security cameras alongside other tools to ensure the safety and security of the public, our employees, and County resources while respecting privacy interests.

2. **Applicability**

This policy applies to all Buncombe County departments and employees unless there is a conflict with GS 153A-103 related to hiring, discharging, and supervising employees. Such an exclusion is noted at the end of this policy. Otherwise, departments may adopt and enforce policies that are more restrictive than County Policy.

3. **Policy**

3.1. **Placement of Security Cameras**

3.1.1. General Placement

- 3.1.1.1. When deployed, security cameras can be installed in high traffic common areas and hallways, areas open to the public, areas where cash is handled, areas where County resources are stored, points of ingress and egress, and areas dedicated to County operations.
- 3.1.1.2. Personal devices and personal cameras are not considered security cameras and cannot be used as such in County operated buildings.
- 3.1.1.3. This policy applies to those cameras that comprise the security monitoring system for Buncombe County, and not those cameras used for other business purposes, such as, but not limited to broadcasting, media development, traffic studies, etc.

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3.1.2. Areas Off Limits to Security Cameras

- 3.1.2.1. Security cameras will not be deployed to areas where there is an inherent expectation of privacy, such as, but not limited to restrooms, locker rooms, private offices, areas dedicated to health services or counseling services, voting enclosures, areas dedicated to county investigations, and some areas related to Human Resources.
- 3.1.2.2. A sign that clearly states that a space is under surveillance will be sufficient to remove any expectation of privacy in that space and is therefore subject to security camera monitoring.

3.1.3. Special Circumstances

- 3.1.3.1. In response to specific concerns around safety or security related to criminal behavior or other credible threats known to law enforcement and/or County Security, the County may install cameras on a temporary basis after consultation with the Public Safety Training and Security Manager and/or the County Manager.
- 3.1.3.2. Cameras installed under such circumstances will adhere to this policy's limits on camera placement, as defined in 3.1.2.

3.1.4. Coverage Limits

- 3.1.4.1. This policy does not constitute a guarantee that all public or highly trafficked areas will be covered by security cameras. The County will designate those areas that will most benefit from coverage of cameras and plan installations accordingly, in consultation with the County Manager, the Public Safety Training and Security Manager, or outside experts.

3.2. Storage and Sharing of Recorded Material

3.2.1. Retention

- 3.2.1.1. Footage from all security cameras will be securely maintained and disposed of in accordance with the North Carolina Records Retention and Disposition Schedule.
- 3.2.1.2. Pursuant to a request, any incidents that occur within the view of a camera that warrant investigation should be saved and exported in a timely manner by those authorized to access the specific system involved.
- 3.2.1.3. All footage will eventually be erased or "overwritten," unless retained as part of a law enforcement or administrative investigation, a valid court order, a litigation hold, or as needed for legitimate business or training purposes.

3.2.2. Saving Footage

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- 3.2.2.1. Footage may not be shared, exported, or copied (including using a camera or cell phone to record a video monitor) without the consent of Buncombe County Legal and Risk.

3.2.3. Video Footage Requests

- 3.2.3.1. All requests for footage, from either internal partners and external parties (except those outlined in section 3.2.4), must be directed to the Buncombe County Public Records Request Center, and ensure compliance with associated request policies and procedures.
- 3.2.3.2. For footage requests made according to this policy, it is appropriate to save the requested footage to ensure it is not overwritten, but the footage may not be shared until the appropriate internal process has been completed.
- 3.2.3.3. Prior to disclosing the footage or data from the footage Buncombe County Legal must be consulted to ensure applicable laws and regulations are considered and that data can be permissibly shared.

3.2.4. Video Footage Requests for Internal or Public Safety Investigations

- 3.2.4.1. To preserve the confidentiality of investigations, video requests related to an investigation authorized by the leaders (or their designee) of the following departments, in consultation with Buncombe County Legal, may be made outside of the Buncombe County Public Records Request Center:
 - Human Resources Director
 - Internal Audit Director
 - Sheriff's Office
 - County Manager's Office
- 3.2.4.2. Additionally, video requests related to an investigation authorized by the following job titles, in consultation with Buncombe County Legal, may be made outside of the Buncombe County Public Records Request Center:
 - Public Safety Training and Security Manager
 - Safety Officer
 - Risk Officer
- 3.2.4.3. Requests should be made to Information Technology, to the system administrator responsible for managing security camera software and storage applications. An internal ticket should be logged, and the IT director should be informed that an IT employee will be assisting with sensitive work.

3.2.4.4. Details related to the investigation may be omitted at the discretion of the requesting party.

3.3. Access and Use of Cameras

- 3.3.1. A camera's live feed or its footage may be accessed by Buncombe County Security and Safety Staff or any director whose department has facilities or shared space covered by the camera.
- 3.3.2. Likewise, a director may grant permission for any member of their department to view a camera's feed or footage for business purposes.
- 3.3.3. All staff and personnel with access and use of cameras, are required to acknowledge and comply with this policy and its accompanying procedures.
- 3.3.4. Any additional user access to security cameras and/or their accompanying software will be authorized for legitimate business purposes by the respective Department Director or County Management and granted by the Information Technology Department.
- 3.3.5. If any Department Director feels that a specific security camera should not be accessed by the Safety and Security Team, the following will apply:
 - The Department Director will notify the Security and Safety Team in writing.
 - The Security and Safety Team (or their designee) will consult with Buncombe County Legal and will meet with the Director to address those concerns.
 - Through collaboration, a determination will be made by the Security and Safety Team and the Department Director.
 - If the Security and Safety Team along with the Department Director are unable to reach a consensus, the matter will be referred to County Management for a final decision.

3.4. Live Monitoring

- 3.4.1. Live monitoring of security cameras is permitted by a limited number of authorized and trained staff with a legitimate, approved, and documented business purpose for real time access. All other access will be limited to recorded footage and requested in compliance with Sections 3.2.3 and 3.2.4.
- 3.4.2. The presence of security cameras in any space and the existence of this policy do not constitute a guarantee that security cameras will be actively monitored by personnel at any given time.

3.5. Adjustments and Maintenance

- 3.5.1. Any adjustments to the physical security camera hardware, including repositioning cameras, moving, or relocating cameras, or removing cameras, and any maintenance to camera hardware will be carried out under the direction of the Department of General Services.
- 3.5.2. Any adjustments, upgrades, or maintenance to the software system supporting security cameras will be carried out under the direction of the Information Technology Department.

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4. Policy Non-Compliance

Employees willfully violating the terms and conditions of this policy may be subject to appropriate disciplinary action, up to and including dismissal.

5. Audit

All policies for Buncombe County may be subject to audit or review as outlined in the [Internal Auditor's Statement](#).

6. Definitions

- 6.1. Live Monitoring – Occurs when the video feed(s) are being actively viewed in real-time by personnel.
- 6.2. Buncombe County Security & Safety Staff – this refers to the following list of job titles:
The Public Safety Training and Security Manager or designee, and the Safety Officer.

7. Approval and Revision History

Policy Origination Date:	March 1, 2023
Requires Board Approval:	☐ Yes ☒ No
Board Approval Date:	Click or tap to enter a date.
Policy Exclusions:	None
Revision History:	05/25/23- edited to allow access to data by the Security Officer, and access to stored data by the Sheriff's Office
	1/11/24 – edited to include all Buncombe County Security & Safety Staff, additional verbiage for access, included Buncombe County Legal where needed.
	1/28/26 - removed references to Safety, Preparedness, and Recovery officer

8. Background

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